

**NOVATO CITY COUNCIL
MEETING MINUTES**

**COUNCIL CHAMBERS
901 SHERMAN AVENUE
NOVATO, CA 94945**

January 23, 2024 – 6:00 PM

A. CONVENE, PLEDGE OF ALLEGIANCE, AND ROLL CALL

The City Council meeting was called to order at 6:04 p.m., with Mayor Milberg leading the Pledge of Allegiance.

COUNCIL PRESENT: Mayor Mark Milberg, Mayor Pro Tempore Tim O'Connor Councilmember Pat Eklund, Councilmember Rachel Farac, and Councilmember Susan Wernick

STAFF PRESENT: Interim City Manager Amy Cunningham, Police Chief Jim Naugle, Interim Public Works Director Chris DeGabriele, Community Development Deputy Director Steve Marshall, Senior Planner Brett Walker, Senior Planner Vivek Damodaran, Sergeant Reza Pourfarhani, City Attorney Gary Bell and City Clerk Laura McDowall

B. CLOSED SESSION ANNOUNCEMENT

There was no closed session.

C. CEREMONIAL MATTERS/PRESENTATIONS

C.1. Presentation: Center for Domestic Peace

Marla Hedlund, Development and Community Relations Officer for the Center for Domestic Peace gave the presentation.

D. APPROVAL OF THE FINAL AGENDA

COUNCIL ACTION: Upon motion by Councilmember Eklund and seconded by Councilmember Wernick, the City Council voted 5-0 via roll call to approve the Final Agenda.

**AYES: EKLUND, FARAC, WERNICK, O'CONNOR, MILBERG
NOES: NONE**

Motion carried.

E. REPORTS FROM THE CITY COUNCIL & CITY MANAGER

Interim City Manager Cunningham reported on various City matters and the City Council gave reports on meetings and events they had attended.

F. PUBLIC COMMENT

None

G. CONSENT CALENDAR

COUNCIL ACTION: Upon motion by Councilmember Eklund and seconded by Mayor Pro Tem O'Connor, the City Council voted 5-0 via roll call to approve the Consent Calendar.

AYES: EKLUND, FARAC, WERNICK, O'CONNOR, MILBERG

NOES: NONE

Motion carried.

G.1. Waive reading and authorize introductions and/or adoption of ordinances by title only *this was a standard procedural action so that the City Council did not have to read ordinances aloud in their entirety*

G.2. Approve the City Council closed and open session meeting minutes of December 5, 2023

The City Council approved the closed and open session meeting minutes of December 5, 2023.

G.3. Approve the City Council meeting minutes of December 12, 2023

The City Council approved the meeting minutes of December 12, 2023.

G.4. Adopt Ordinance 1710 adopting a Master Plan, Precise Development Plan, and Design Review for Valley Oaks on an approximately 38-acre site located on the West Side of Redwood Blvd (APNs 125-580-34 and 125-580-37) and rescinding all previously approved Master Plans and amendments thereto, as applicable

The City Council adopted Ordinance 1710.

G.5. Adopt Ordinance 1711 approving Zoning Map Amendments to implement Program 1.A of Novato's 6th Cycle Housing Element for the Planning Period 2023-2031, including assigning the R20-2.0 and Open Space (OS) Zoning District Classifications to APN 125-202-12 (Meadow Crest Road) and the R20-2.0 Zoning District Classification to APN 141-291-32 (1682 Novato Blvd)

The City Council adopted Ordinance 1711.

G.6. Receive and file the list of upcoming and to be determined City Council agenda items for the first quarter of 2024

The City Council received and filed the list.

H. UNFINISHED AND OTHER BUSINESS

There were no items listed for this section.

I. PUBLIC HEARINGS

I.1. 773, 775, & 777 San Marin Drive APNs 125-202-03, -04, & -05

Hold a Public hearing and consider:

- (1) Adopting a resolution accepting a CEQA addendum to the certified environmental impact report (“Certified EIR”) for Novato General Plan 2035, prepared to address residential redevelopment of 773, 775, & 777 San Marin Drive;**
- (2) Adopting a resolution amending the land use map and text of Novato General Plan 2035 to assign the High Density Multiple Family Residential (R20) and Open Space (OS) land use designations to 773, 775, & 777 San Marin Drive and amend select text of the General Plan to support residential redevelopment of the property; and**
- (3) Introducing an ordinance repealing and replacing City of Novato Ordinance No. 887, originally approving the Fireman’s Fund office campus, with a combined master plan, precise development plan, and design review supporting residential redevelopment of the former office campus property at 773, 775, & 777 San Marin Drive**

Community Development Deputy Director Steve Marshall opened the item and introduced Riley Hurd, Cindy Ma and Joe Runco who gave the presentation on behalf of the applicant, Bay West.

PUBLIC COMMENT:

1. Barbara Slack
2. Seth Shorett
3. Sylvia Barry
4. Lynne Wada

Concern was expressed regarding issues such as building height and potential traffic impacts, however it was generally felt that the item should move forward as presented.

COUNCIL ACTION: Upon motion by Mayor Pro Tem O’Connor and seconded by Councilmember Wernick, the City Council voted 4-1 via roll call to adopt a resolution finding the proposed General Plan Land Use Map and Text Amendments and Combined Master Plan, Precise Development Plan and Design Review addressing Residential Redevelopment of the former Fireman’s Fund Office Campus, 773, 775, & 777 San Marin Drive (APNs 125-202-03, -04, & -05), to be exempt from further Environmental Review pursuant to California Environmental Quality Act (CEQA) Guidelines Sections 15162 and 15164 based on an Addendum to the Final Environmental Impact Report certified for Novato General Plan 2035, with Councilmember Eklund voting No.

AYES: FARAC, WERNICK, O’CONNOR, MILBERG

NOES: EKLUND

Motion carried. The City Council adopted Resolution No. 2024-011.

COUNCIL ACTION: Upon motion by Mayor Pro Tem O'Connor and seconded by Councilmember Wernick, the City Council voted 4-1 via roll call to adopt a resolution amending the Land Use Map and Text of Novato General Plan 2035 to support redevelopment of the former Fireman's Fund Office Campus as a residential community, including assigning the High Density Multiple Family Residential (R20) and Open Space (OS) Land Use designations to approximately 44-acres and 21-acres, respectively, of the 65-acre property located at 773, 775, & 777 San Marin Drive (APNs 125-202-03, -04, & -05), with Councilmember Eklund voting No.

AYES: FARAC, WERNICK, O'CONNOR, MILBERG

NOES: EKLUND

Motion carried. The City Council adopted Resolution No. 2024-012.

COUNCIL ACTION: Upon motion by Mayor Pro Tem O'Connor and seconded by Councilmember Wernick, the City Council voted 4-1 via roll call to introduce an ordinance repealing and replacing City of Novato Ordinance No. 887, Fireman's Fund Office Project Master Plan, with the combined Master Plan, Precise Development Plan, and Design Review for 773, 775, and 777 San Marin addressing residential redevelopment of the former Fireman's Fund Office Campus, including Objective Design and Development standards applicable to 773, 775, & 777 San Marin Drive; (APNs 125-202-03, -04, & -05)

AYES: FARAC, WERNICK, O'CONNOR, MILBERG

NOES: EKLUND

Motion carried. The City Council introduced Ordinance 1712.

The City Council took a recess at 8:37pm and returned at 8:46pm.

**I.2. Village at Novato Mixed-Use Project
7530 Redwood Boulevard | APNs 143-011-05 & -08**

Hold a Public Hearing and consider:

- (1) Adopting a resolution adopting a CEQA Initial Study/Mitigated Negative Declaration (IS/MND) and Mitigation Monitoring and Reporting Program (MMRP);**
- (2) Adopting a resolution approving a General Plan land use map amendment for the 5.9-acre project site to change its land use designation from General Commercial (CG) to Mixed-Use (MU);**
- (3) Introducing an ordinance approving a zoning map amendment for the 5.9-acre site to change its zoning from General Commercial (CG) to Mixed-Use (MU); and**
- (4) Adopting a resolution approving a use permit, design review, and a density bonus request to allow the proposed mixed-use project**

for the Village at Novato Mixed-Use Project, which includes 178 multi-family residential units, 14,000 square feet of commercial space, and ancillary improvements proposed at 7530 Redwood Boulevard (APNs 143-011-05 & -08)

Senior Planners Vivek Damodaran and Brett Walker opened the item and introduced Chris Cole from ROIC and Isaih Stackhouse of Trachtenberg Architects who gave the presentation and responded to Council questions.

PUBLIC COMMENT:

1. Barbara Slack
2. Seth Shorett

COUNCIL ACTION: Upon motion by Councilmember Eklund and seconded by Councilmember Farac, the City Council voted 5-0 via roll call to adopt a resolution adopting a Mitigated Negative Declaration and Mitigation Monitoring and Reporting Program for the Village at Novato Mixed-Use Project at 7530 Redwood Boulevard (APNs 143-011-05 & 143-011-08).

**AYES: EKLUND, FARAC, WERNICK, O'CONNOR, MILBERG
NOES: NONE**

Motion carried. The City Council adopted Resolution No. 2024-013.

COUNCIL ACTION: Upon motion by Councilmember Farac and seconded by Councilmember Wernick, the City Council voted 5-0 via roll call to adopt a resolution approving an amendment to the Novato General Plan Land Use Map applicable to the parcels at 7530 Redwood Boulevard, APNs 143-011-05 & 143-011-08, from General Commercial (CG) to Mixed-Use (MU).

**AYES: EKLUND, FARAC, WERNICK, O'CONNOR, MILBERG
NOES: NONE**

Motion carried. The City Council adopted Resolution No. 2024-014.

COUNCIL ACTION: Upon motion by Councilmember Wernick and seconded by Councilmember Farac, the City Council voted 5-0 via roll call to introduce an ordinance approving an amendment to the Novato Zoning Map applicable to the parcels at 7530 Redwood Boulevard, APNs 143-011-05 & 143-011-08, from General Commercial (CG) to Mixed-Use (MU).

AYES: EKLUND, FARAC, WERNICK, O'CONNOR, MILBERG
NOES: NONE

Motion carried. The City Council introduced Ordinance 1713.

COUNCIL ACTION: Upon motion by Councilmember Farac and seconded by Councilmember Wernick, the City Council voted 5-0 via roll call to adopt a resolution approving a Use Permit, Design Review, and a Density Bonus request for the proposed Village at Novato Mixed-Use Project, a 178-unit and 14,000 square foot Mixed-Use project at 7530 Redwood Boulevard, APNs 143-011-05 & 143-011-08.

AYES: EKLUND, FARAC, WERNICK, O'CONNOR, MILBERG
NOES: NONE

Motion carried. The City Council adopted Resolution No. 2024-015.

The City Council took a brief recess between 9:40pm and 9:47pm.

J. GENERAL BUSINESS

J.1. Receive a presentation from the Novato Police Department regarding electric mobility devices and provide direction to staff on next steps

Police Chief Jim Naugle and Sergeant Reza Pourfarhani presented the item and received feedback from the City Council.

PUBLIC COMMENT:

1. Zoë Reckas

The City Council took a recess at 10:43pm and returned at 10:45pm.

J.2. Provide initial direction on the development of the Fiscal Year (FY) 2024/25 operating budget

Interim City Manager Amy Cunningham presented the item and received direction on the development of the Fiscal Year 2024/25 operating budget.

PUBLIC COMMENT: None

K. COMMISSIONS, COMMITTEES AND BOARDS (CCB'S) APPOINTMENTS

There were no items for this section.

L. WORK STUDY SESSION

There were no items for this section.

M. ADJOURNMENT

The City Council adjourned the meeting at 11:07 p.m.

I HEREBY CERTIFY that the foregoing minutes were duly and adopted at the Novato City Council regular meeting of February 13, 2024.

/Laura McDowall/

Laura McDowall, City Clerk